

1. CAPITAL ONE, N.A. v. McGINNIS, 25CV1362**Motion for Judgment on the Pleadings**

Pending before the court is plaintiff Capital One, N.A.'s ("plaintiff") unopposed motion for judgment on the pleadings under Code of Civil Procedure section 438, following the court's January 16, 2026, order granting plaintiff's motion to deem matters admitted, wherein the court deemed all matters in plaintiff's Requests for Admission (Set One) propounded upon defendant admitted. Plaintiff's counsel declares she attempted to meet and confer with defense counsel prior to filing the motion but received no response. (D'Anna Decl., ¶¶ 3–4, Ex. 3.)

1. Request for Judicial Notice

Pursuant to Evidence Code section 452, subdivision (c), the court grants plaintiff's unopposed request for judicial notice of Exhibit 1 (plaintiff's Requests for Admission (Set One) propounded upon defendant) and Exhibit 2 (court's order issued January 16, 2026, granting plaintiff's motion to deem matters admitted).

2. Background

This is a delinquent loan action. The complaint alleges defendant owes plaintiff \$11,536.63 on the subject credit card. Defendant filed an answer generally denying each and every allegation in plaintiff's complaint and asserting various affirmative defenses.

On January 16, 2026, the court granted plaintiff's motion to deem matters admitted. (See RJN, Ex. 2.) As relevant here, the following matters were deemed admitted:

(1) defendant applied for a credit card charge account with plaintiff; (2) defendant received the customer agreement when he received his credit card; (3) pursuant to the agreement, by using the credit card, defendant agreed to be bound by the terms of the agreement; (4) defendant agreed to pay plaintiff for charges made on the charge account; and (5) defendant currently owes \$11,536.63 on the charge account.

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3. Legal Principles

A motion for judgment on the pleadings serves the same function as a general demurrer. (*Smiley v. Citibank* (1995) 11 Cal.4th 138, 145–146.) A motion may be brought where “the complaint states facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A); see also *Adjustment Corp. v. Hollywood Hardware & Paint Co.* (1939) 35 Cal.App.2d 566, 569–570 [judgment on the pleadings is proper where the answer “fails to deny any of the material allegations of the complaint”].) The grounds for a judgment on the pleadings must appear on the face of the challenged pleading or be based on facts the court may judicially notice. (Code Civ. Proc., § 438, subd. (d); *Tung v. Chicago Title Co.* (2021) 63 Cal.App.5th 734, 758–759.)

4. Discussion

Based on the judicially-noticed matters deemed admitted, the court finds plaintiff has met its burden on the instant motion for judgment on the pleadings. The motion is granted.

TENTATIVE RULING # 1: THE MOTION FOR JUDGMENT ON THE PLEADINGS IS GRANTED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.